

In the Matter of an Interest Arbitration

BETWEEN:

**THE REGIONAL MUNICIPALITY OF
NIAGARA**

(the "Region")

AND

CANADIAN UNION OF PUBLIC EMPLOYEES, LOCAL 911

(the "Union")

BEFORE: Eli A. Gedalof, Chair
Greg Shaw, Employer Nominee
Wassim Garzouzi, Union Nominee

APPEARANCES

For the Employer

Daryn Jeffries, Counsel, Rae Christen Jeffries LLP
Anne Marie Heenan, Counsel, Rae Christen Jeffries LLP
Peter Kennah, Labour Relations Manager
Jeff Garritsen, Associate Director, Labour and Employee Health
Karen Lutz, Deputy Chief, EMS Operations
Richard Ferron, Chief, EMS
Michael Franklin, Deputy Chief, EMS System Performance
Robert Barbisan, Commander, EMS Land Operations
Gordie Harris, Commander of Operations

For the Union

Chantelle Flowers, Union Advocate, Legal & Legislative Representative
Michael Maddock, CUPE Associate Coordinator—Municipal
Jennifer Mizerovsky, CUPE National Representative
Jon Brunarski, President
Robyn Clarke, Bargaining Committee Member
Leila Paugh, Bargaining Committee Member
Melissa Lacroix, Bargaining Committee Member
Michael Varey, Bargaining Committee Member
Cory Burnarski, Bargaining Committee Member

AWARD

1. This Board was duly appointed by the parties to settle the terms of the renewal of their collective agreement, which expired on September 28, 2020. CUPE Local 911 (the "Union") represents a bargaining unit of approximately 460 members employed by the Regional Municipality of Niagara (the "Region"), providing paramedical and communications services. The parties have agreed that the collective agreement arising from this award shall have a three-year term, from September 29, 2020 to September 28, 2023.

2. Both parties filed comprehensive briefs with supporting materials and attended at a hearing on August 16, 2023 to make further submissions. In support of their positions, the parties addressed the following criteria set out under the *Ambulance Services Collective Bargaining Act, 2001* (the "ASCBA"), all of which we have considered:

21(2) In making a decision, the arbitrator shall consider the following factors and any other factors that he or she considers relevant:

1. The employer's ability to pay, in light of its fiscal situation.
2. The extent to which services would have to be reduced in light of the decision, if current funding and taxation levels are not increased.
3. The economic situation in Ontario and in the municipality where employees in the bargaining unit provide services.
4. A comparison, as between the employees in the bargaining unit and other comparable employees in the public and private sectors, of the terms and conditions of employment and the nature of the work performed.
5. The employer's ability to attract and retain qualified employees.
6. The purposes of the Public Sector Dispute Resolution Act, 1997.
7. A comparison of the cost of providing ambulance services through members of the bargaining unit with the cost of providing those services through,
 - i. in the case of a public sector employer, employees who work for private sector providers of ambulance services, or
 - ii. in the case of a private sector employer, employees who work for other private sector providers of ambulance services.

3. We have also applied the established principles of interest arbitration. Primary among those principles is the principle of replication and the associated principle of comparability. As always, it is the role of this board of interest arbitration to replicate to the greatest extent possible the agreement that these parties would have reached had they been able to resolve the matter in free collective bargaining. In this case, the replication exercise is highly informed by outcomes at comparable ambulance services.

4. We have also had particular regard to the principles of demonstrated need and total compensation. These principles constrain the overall monetary and other improvements the Union could reasonably expect to attain in a single round of bargaining. We also have regard to the mature nature of the bargaining relationship between these parties, and the incremental nature of collective bargaining.

5. Balancing these considerations, we direct that the renewal collective agreement between the parties shall consist of the terms of the expired agreement as amended by any previously agreed to items between the parties and the following terms:

Term-September 29, 2020 to September 28, 2023

Wages-Across the Board Increases as follows:

- Effective September 29, 2020-1.75%
- Effective September 29, 2021-1.75%
- Effective September 29, 2022-2.3%
- Effective Date of Award-1.5%

All Across the Board Wage Increases are retroactive.

Bereavement Leave (Article 14.01)

- Effective date of award, add "memorial service" as per Union proposal. Remainder of proposal not granted.

Weekend Premium (Article 15.02)

- Effective date of Award, increase weekend premium to \$1.00.

Meal Allowance (Article 15.08)

- Effective date of Award, increase meal allowance to \$15.00.

Benefits

- Effective date of Award increase vision to \$400 and eye exams to \$80.
- Effective date of Award grant Union proposed amendments to paramedical services applicable to both employees and dependents.

6. All remaining proposals not specifically addressed above are deemed dismissed. We remain seized in accordance with Section 21(4) of the ASCBA.

Dated at Toronto, Ontario, this 15th day of November 2023.

"Eli Gedalof"

Eli A. Gedalof, Chair

"I dissent in part"

Greg Shaw, Employer Nominee

"I dissent in part"

Wassim Garzouzi, Union Nominee